

# SENATE . . . . . No. 1641

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Michael D. Brady*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating the Public Safety Building Authority.

PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:                  |                  |
|------------------------------|------------------------------------|------------------|
| <i>Michael D. Brady</i>      | <i>Second Plymouth and Norfolk</i> |                  |
| <i>Steven George Xiarhos</i> | <i>5th Barnstable</i>              | <i>1/27/2025</i> |
| <i>James K. Hawkins</i>      | <i>2nd Bristol</i>                 | <i>6/11/2025</i> |
| <i>Joan B. Lovely</i>        | <i>Second Essex</i>                | <i>6/17/2025</i> |

# SENATE . . . . . No. 1641

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By Mr. Brady, a petition (accompanied by bill, Senate, No. 1641) of Michael D. Brady and Steven George Xiarhos for legislation to create the public safety building authority. Public Safety and Homeland Security.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 1480 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act creating the Public Safety Building Authority.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           (a) There is hereby created a body politic and corporate and a public instrumentality to be  
2 known as the Massachusetts Municipal Public Safety Building Authority, which shall be an  
3 independent public authority not subject to the supervision and control of any other executive  
4 office, department, commission, board, bureau, agency or political subdivision of the  
5 commonwealth except as specifically provided in any general or special law. The exercise by the  
6 authority of the powers conferred by this chapter shall be considered to be the performance of an  
7 essential public function.

8           (b) The authority shall consist of the state treasurer, who shall serve as chairperson, the  
9 secretary of administration and finance, the secretary of the executive office of public safety and  
10 security, and 6 additional members appointed by the state treasurer, 3 of whom shall have

11 practical experience in public safety facilities planning, public safety construction, or  
12 architecture and public safety facility design, and 1 of whom shall be persons in the field of law  
13 enforcement, 1 of whom shall be in the field of firefighting, and one of whom shall be in the  
14 field of emergency medical services, each of whom shall serve a term of 2 years; but, a person  
15 appointed to fill a vacancy shall serve only for the unexpired term. An appointed member of the  
16 authority shall be eligible for reappointment. The authority shall annually elect 1 of its members  
17 to serve as vice-chairperson. Each member of the authority serving ex officio may appoint a  
18 designee pursuant to section 6A of chapter 30.

19 (c) Five members of the authority shall constitute a quorum, and the affirmative vote of  
20 five members of the authority shall be necessary and sufficient for any action taken by the  
21 authority. No vacancy in the membership of the authority shall impair the right of a quorum to  
22 exercise all the rights and duties of the authority. Members shall serve without pay but shall be  
23 reimbursed for actual expenses necessarily incurred in the performance of their duties. The  
24 chairperson of the authority shall report to the governor and to the general court no less than  
25 annually, to assist the executive and legislative branches in coordinating public safety and fiscal  
26 policies of the Commonwealth.

27 (d) Any action of the authority may take effect immediately and need not be published or  
28 posted unless otherwise provided by law. The authority shall be subject to all provisions of  
29 chapter 30A, and records pertaining to the administration of the authority shall be subject to  
30 section 42 of chapter 30 and section 10 of chapter 66. All moneys of the authority shall be  
31 considered to be public funds for purposes of chapter 12A. The operations of the authority shall  
32 be subject to chapter 268A and chapter 268B and all other operational or administrative  
33 standards or requirements to the same extent as the office of the state treasurer.